

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 09, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

			On March 6, 2026, Plaintiffs filed a DOE Amendment substituting defendant Amber Drake for Doe Defendant #1. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the demurrer and motion to stay is OFF CALENDAR at parties request.
<u>LINE 3</u>	26CV492170	California Civil Rights Department vs Arcadia Management Services Co.	Application Defendant Chang filed this demurrer to the complaint on September 5, 2025, the motion was accompanied by a proof of service indicating electronic service to the plaintiff on that same day. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the Court SUSTAINS the demurrer. Moving party to prepare the formal Order.

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LAW AND MOTION TENTATIVE RULINGS

LINE 4	22CV397674	Teng Wu vs General Motors, LLC	Motion for Attorney's Fees and Cost Scroll down to Line 4 for Tentative Ruling.
LINE 5	25CV468882	City and County of San Francisco vs Matt Pear et al	Motion to Bifurcate Trial of Complaint for Declaratory Relief Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV481376	Twomagnets, LLC vs Coraopolis Rehabilitation and Wellness Center, LLC et al	Motion to Confirm Arbitration Award Scroll down to Line 6 for Tentative Ruling.

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9:01 A.M.			
LINE 1	Null	Null	NULL

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